

Master Services Agreement

This Master Services Agreement (this “Agreement”), dated as of February 21, 2022, is between Curious Bean LLC, a Wisconsin limited liability company (“Curious Bean”), and Ascent Harmony Hospitality Group LLC, DBA Uncle Buck’s (“Client”).

In consideration of the mutual covenants, terms, and conditions set forth in this agreement, and for other good and valuable consideration, Curious Bean and the Client agree as follows:

1. **Statements of Work.** Subject to the terms and conditions of this Agreement, Curious Bean shall use commercially reasonable efforts to perform the duties described in all related Statements of Work. If the Client desires that Curious Bean perform work outside the scope of related Statements of Work, the Client must request a Statement of Work from Curious Bean. Within 14 days of receiving such a request, Curious Bean will send a proposed Statement of Work to the Client in the form of Exhibit A to this Agreement. The Client must accept or reject the proposed Statement of Work within 5 days or it is deemed rejected. If it is accepted, it amends this Agreement and becomes part of it.

If the Client requests that Curious Bean perform work outside the scope of this Agreement or related Statements of Work, the Client must pay Curious Bean for such work on either a project basis at the rate of \$300 per project or an hourly basis at the rate of \$125 per hour. Work performed in this manner requires written consent & specification of payment rate by both parties before work can commence in the form of an attached “Scope of Work” document.

2. **Fees, Expenses, and Payment.**
 - a. **Fees.** The Client shall pay Curious Bean fees calculated at a rate of either \$300 *per project* or \$75 *per hour* (“Fees”), to be specified in each attached “Scope of Work” document for all services performed under this Agreement.

- b. **Expenses.** In addition to the Fee, the Client will reimburse Curious Bean for the following expenses incurred with written pre-approval from the Client, within 15 days of receiving an invoice:
- i. Third-party content (such as stock photography or third party software) that the Client requests or agrees be incorporated into the Work Product;
 - ii. travel expenses incurred by Curious Bean; and
 - iii. Out-of-pocket expenses, including postage, shipping, printing, and other incidental expenses resulting from this Agreement.
- c. **Payment.** The Client shall pay all fees and Expenses within 30 days after the date of receipt of an invoice from Curious Bean. The Client shall make all payments hereunder in US dollars using ACH or wire transfer.
- d. **Late Payment.** If the Client fails to make payments when due, Curious Bean may charge interest on the past due amount at the rate of 2% per month calculated daily and compounded monthly or, if lower, the highest rate permitted under Wisconsin law. The Client shall reimburse Curious Bean for all reasonable costs incurred by Curious Bean in collecting any late payments or interest, including attorneys' fees, court costs and collection fees.

If the Client fails to make any payment when due and if such failure continues for 10 days following written notice thereof, Curious Bean may suspend performance of the services contemplated herein until all past due amounts and interest have been paid without incurring any obligation or liability to the Client or any other person/entity by any reason of such suspension. In the event of Curious Bean suspending performance of services due to late payment, any and all deadlines and milestones shall be extended by the amount of time services were suspended.

3. **Confidential Information.** During the term of this Agreement and for one year thereafter, Curious Bean will use reasonable care to prevent the unauthorized use or dissemination of the Client's confidential information.

“Confidential information” means information clearly marked as confidential, or disclosed orally and summarized and identified as confidential in a writing delivered to Curious Bean within 15 days of disclosure. Confidential information does not include information that: Curious Bean knew before the Client disclosed it; is or becomes public knowledge through no fault of Curious Bean; Curious Bean obtains from sources other than the Client who owe no duty of confidentiality to the Client, or Curious Bean independently develops.

4. **Feedback and Review Process.** Curious Bean and the Client will use commercially reasonable efforts to adhere to the following feedback and review process:
- a. Curious Bean will internally test each deliverable before giving it to the client.
 - b. Upon receiving a deliverable, the Client will evaluate it and will notify Curious Bean within 10 days whether it is accepted or rejected.
 - c. If the Client rejects a deliverable, Curious Bean will correct any failures in the deliverable to substantially conform to the relevant Statement of Work or Functional Specification and will again ask the Client to accept or reject the deliverable.
 - d. This process will repeat until either the Client accepts the deliverable or 10 days have passed and the Client has not accepted or rejected it, at which point the deliverable is deemed accepted.
 - e. After the Client accepts a deliverable, Curious Bean will proceed to do work on the next milestone or deliverable.
 - f. This process applies to final deliverables as well, except that the Client will have 15 days to accept or reject final deliverables. If the client has not accepted or rejected final deliverables (or final corrected deliverables) within 15 days of receiving them, the final deliverables are deemed accepted.
 - g. Subject to written consent from both parties, this process may be modified on a per-deliverable basis without changes to this Agreement.

5. **Client Content.** The client represents and warrants as follows:

- a. the Client owns the rights, including all intellectual property rights, to use anything the Client gives Curious Bean (the “Client Content”).
- b. the Client Content does not violate the patent, copyright, trade secret or other property right of any person, firm or entity; and
- c. this Agreement does not conflict with any other contract, agreement, or understanding to which the Client is a party.

The Client grants Curious Bean a nonexclusive, non-transferable license to use, reproduce, modify, display or publish the Client Content solely in connection with the Work Product and, with the Client’s written consent, for Curious Bean’s limited promotional uses as allowed by this Agreement.

6. **Rights to Know-How.** Subject to the Client’s written consent, Curious Bean may incorporate into the Work Product various pre-existing development tools, routines, subroutines, programs, data or materials (collectively, “Know-How”). Curious Bean retains all rights, title and interest, including all copyright, patent, and trade secret rights to that Know-How. Upon inclusion of this Know-How into the Work Product, the Client will receive a non-exclusive, perpetual, worldwide license to use the Know-How in the Work Product. The Client, however, may not resell or use the Know-How in any other manner than in connection with the Work Product absent the written consent of Curious Bean.

7. **Warranty.** Curious Bean warrants the following

- a. **Work Product Performance.** For 60 days following the acceptance of Work Product by the client, the Work Product will be free from material reproducible programming errors and defects in workmanship and materials, and will substantially conform to any relevant Statements of Work or Functional Specifications when maintained and operated as per Curious Bean’s instructions. If material reproducible programming errors (“Bugs”) are discovered during the warranty period, Curious Bean will promptly remedy them at no additional expense to the Client. “Bugs” means errors in existing code which causes the Work Product to behave in an unintended manner. Bugs do not include code which was unintentionally left out

of the deliverable, or interface styling that is deemed undesirable by the client except in cases where high fidelity designs were provided to Curious Bean.

Curious Bean will promptly remedy any non-bug defects in the Work Product at the clients request at the rate specified in section 2 of this Agreement (Fees).

This warranty to the client is null and void if the Client is in default under this Agreement or if the nonconformance is due to:

- i. hardware failures due to defects, power problems, environmental problems or any cause other than the Work Product itself;
- ii. modification of the Work Product, operating systems or computer hardware by any party other than Curious Bean; or
- iii. misuse, errors or negligence of the client, its employees or agents in operating the Work Product.

Curious Bean is not obligated to cure any defect unless the Client notifies it of the existence and nature of such defect promptly upon discovering it.

- b. **Warranty of Title.** Curious Bean has the right to assign or license, as applicable, the Work Product covered by this Agreement. Curious Bean will not grant any rights or licenses to any intellectual property or technology that would conflict with Curious Bean's obligations under this agreement.

THE WARRANTIES IN THIS AGREEMENT ARE EXCLUSIVE AND IN LIEU OF ALL OTHER WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE OR AGAINST INFRINGEMENT, AND CURIOUS BEAN SHALL NOT INDEMNIFY THE CLIENT AGAINST INFRINGEMENT OF ANY PATENTS, COPYRIGHTS, TRADE SECRETS OR OTHER PROPRIETARY RIGHTS.

8. **LIMITATIONS OF REMEDIES.** IN NO EVENT SHALL CURIOUS BEAN BE LIABLE UNDER OR IN CONNECTION WITH THIS AGREEMENT OR ITS SUBJECT MATTER UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, NEGLIGENCE, FOR ANY CONSEQUENTIAL, INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES OR LOSSES ARISING OUT OF OR RELATED TO THIS AGREEMENT, REGARDLESS OF WHETHER CURIOUS BEAN WAS ADVISED OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES.
9. **CAP ON MONETARY LIABILITY.** IN NO EVENT WILL THE AGGREGATE LIABILITY OF Curious Bean UNDER OR IN CONNECTION WITH THIS AGREEMENT OR ITS SUBJECT MATTER, UNDER ANY LEGAL OR EQUITABLE THEORY (INCLUDING BREACH OF CONTRACT, TORT, OR OTHERWISE) EXCEED THE AMOUNT OF THE FEE PAID BY THE CLIENT UNDER THIS AGREEMENT.
10. **Exceptions.** The exclusions and limitations in Section 8 and Section 9 do not apply in circumstances involving gross negligence or willful misconduct.
11. **Independent Contractor.** Curious Bean is an independent contractor and not the Client's employee. Although the Client will provide general direction, Curious Bean will determine, in Curious Bean's sole discretion, the manner and ways in which Curious Bean will create the Work Product. The work that Curious Bean creates for the Client under this Agreement is not "work-for-hire" as that term is defined under U.S. Copyright Law.
12. **Termination.** Either party may terminate this Agreement for reasonable cause by giving the other party at least 14 days prior written notice. "Reasonable Cause" includes failure by Curious Bean to substantially perform the duties described in related Statements of Work. It also includes failure by the Client to pay Curious Bean any fee or expense owed. If either party terminates this Agreement for reasonable cause, the Client must immediately pay Curious Bean all amounts due or accrued to Curious Bean up to the date of termination (with fixed fees to be prorated).
13. **Force Majeure.** Neither party shall be liable to the other for any delay or failure to perform under this Agreement (excluding payment obligations) due to circumstances beyond such party's reasonable control, including acts

of God, acts of government, flood, fire, earthquakes, civil unrest, acts of terror, strikes or other labor problems (excluding those involving such party's employees), service disruptions involving hardware, software or power systems not within such party's possession or reasonable control, and denial of service attacks.

14. Disputes. If a dispute arises under this Agreement and it cannot be resolved with negotiations, the parties must try in good faith to settle the dispute by mediation before bringing a legal action or proceeding. The parties have 45 business days from the date a party receives notice to commence mediation and 120 business days from the notice date to complete mediation. The parties will mutually select a mediator and will share the costs of the mediation equally. The mediation will be conducted in Milwaukee, Wisconsin.

If the mediation fails, any party who desires to bring a legal action or proceeding against any other party arising out of or relating to this Agreement must bring it in a state or federal court in the County of Milwaukee, Wisconsin. The parties consent to the exclusive jurisdiction of such courts, and each party waives any objections it may now or later have to the venue or convenience of such forum. If Curious Bean brings an action or proceeding to recover any fees or expenses owed under this Agreement, the Client must reimburse and indemnify Curious Bean for the costs and expenses, including reasonable attorneys' fees, that Curious Bean incurs in connection with the action or proceeding.

15. Severability. If any term, clause, or provision of this Agreement is determined to be invalid, illegal, or unenforceable, the remaining terms, clauses and provisions remain in full force and effect, if the essential terms and conditions of this Agreement remain valid, legal, and enforceable.

16. Waiver. The parties may not waive any part of this Agreement, except pursuant to a writing executed by the party against whom any waiver is sought to be enforced. No failure or delay in (a) exercising any right or remedy or (b) requiring the satisfaction of any condition under this Agreement, and no course of dealing between the parties, operates as a waiver or estoppel of any right, remedy, or condition.

17. Amendment. This Agreement may be amended only by a written

agreement signed by both parties. "Written Agreement" includes a Change Order entered into pursuant to Section 3 of this Agreement.

- 18. Notice.** A party sending a notice or other communication under this Agreement, such as a notice of termination or demand for payment, shall send a writing to the other party at the following address:

To Developer:

Sabrina Stangler
Curious Bean LLC
1223 East Tripoli Ave
Milwaukee, WI 53207
sabstangler@gmail.com

To Client:

Michelle Le
Ascent Harmony Hospitality
Group LLC, DBA Uncle Buck's
1125 N Doctor M.L.K. Jr Drive
Milwaukee, WI 53203
michelle@unclebucksonthird.com

The notice or other communication must be sent by (i) personal delivery, (ii) prepaid U.S. Mail with proof of delivery (e.g., Certified Mail), (iii) nationally recognized courier service (e.g., UPS or FedEx), or (iv) email. If a party sends a notice by email and receives no response within 2 days, the party must re-send the same notice using one of the other delivery methods. A notice is effective on the date it is sent, unless it states a later effective date.

- 19. Controlling Law.** The laws of Wisconsin govern all matters arising under or relating to this Agreement, including torts.
- 20. Entire Agreement.** This Agreement is the complete and exclusive agreement between the Client and Curious Bean concerning the work on this project, and it supersedes all other prior agreements, proposals, and representations, whether stated orally or in writing.

[signature page to follow]

By signing below, the Client and Curious Bean each represent that they have read this Agreement and agree to its terms and conditions. The Agreement is effective as of the most recent date that appears below.

The Client

By: _____

Michelle Le
Owner

Date: _____

Curious Bean

By:  _____

Sabrina Stangler
Owner

Date: _____

8/10/26

Statement of Work—Exhibit A

By Curious Bean for Client

a. **Overview.**

Produce a public facing website for Uncle Bucks on Third that has dynamic components (events, hours, photos), editable through an admin backend, chosen by Curious Bean LLC for its affordability and simplicity.

b. **Purpose and Objectives.**

Create a public presence that's more in line with the Client's vision for Uncle Bucks on Third, that is: simple, bright, & upbeat. The solution should also reduce monthly costs to something below \$250/month which is what the Client is paying for current solution.

c. **Deliverables.**

Curious Bean will provide the following deliverables as a part of this project:

- One or more repositories containing all source code written in relation to this project
- Any documentation produced in relation to this project
- Credentials for all accounts and services required for this project

d. **Schedule.**

The project will follow the below estimated schedule

Task or Phase	Est. Start Date	Est. End Date	Est. Days Required
<i>Research Admin Backend Solutions</i>	08/10/26	08/11/26	2
<i>Implement Backend, Port Details from SpotHopper</i>	08/13/26	08/14/26	2-3
<i>Implement Website Pulling from Chosen Backend</i>	08/17/26	08/21/26	3

e. **Estimated Budget.**

Curious Bean estimates that the total fees for this project will be \$300

[signature page to follow]

By signing below, the Client and Curious Bean each represent that they have read and agree to this Statement of Work.

The Client

By: _____

Michelle Le
Owner

Date: _____

Curious Bean

By: _____

Sabrina Stangler
Founder

Date: _____

8/10/26